

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2026CUP066691: RAVSFT INC vs BMW OF NORTH AMERICA, LLC, et al.
09/24/2026 in Department 44
Demurrer to Answer

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Notice of Ruling. Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff RAVSFT Inc.'s ("Plaintiff") Demurrer to Defendant BMW of North America, LLC's ("Defendant") Answer

Tentative Ruling: Plaintiff's Demurrer to Defendant's Answer is SUSTAINED WITH LEAVE TO AMEND as to affirmative defenses nos. 2, 3, 4, 5, 7, 8, 10, 11, 12, 13, 14, 15, 17, 18, 21, 23, 24, 26, 27 for failure to state facts sufficient to constitute a defense. (Code Civ. Proc. § 430.20(a).) The Demurrer is OVERRULED as to all other affirmative defenses.

Defendant has 20 days to file an amended answer.

Plaintiff shall give notice.